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Case Number: 25SMCV04422 Hearing Date: July 9, 2026 Dept: M

CASE NAME: Foy, v. Empire

Properties LLC, et al.

CASE NO.: 25SMCV04422

MOTION: Special

Motions to Strike

HEARING DATE: 8/9/2026

Legal

Standard

Code of Civil Procedure ("CCP")

section 425.16 permits the Court to strike causes of action arising from an act in furtherance of the defendant's right of free speech or petition, unless the plaintiff establishes that there is a probability that the plaintiff will prevail on the claim. "The anti-SLAPP procedures are designed to shield a defendant's constitutionally protected conduct from the undue burden of frivolous litigation." (Baral v. Schnitt (2016) 1 Cal.5th 376, 393.)

"The anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity." (Id. at 384.)

"Resolution of an anti-SLAPP motion

involves two steps. First, the defendant must establish that the challenged claim arises from activity protected by section 425.16. If the defendant makes

the required showing, the burden shifts to the plaintiff to demonstrate the merit of the claim by establishing a probability of success.” (Baral, supra, 1 Cal.5th at 384, citation omitted.) The California Supreme Court has “described this second step as a ‘summary-judgment-like procedure.’ The court does not weigh evidence or resolve conflicting factual claims. Its inquiry is limited to whether the plaintiff has stated a legally sufficient claim and made a prima facie factual showing sufficient to sustain a favorable judgment. It accepts the plaintiff’s evidence as true, and evaluates the defendant’s showing only to determine if it defeats the plaintiff’s claim as a matter of law. ‘[C]laims with the requisite minimal merit may proceed.’” (Id. at 384-385, citations omitted.)

CCP section 425.16(e) defines protected acts as the following: 1) any written or oral statement or writing made before a legislative, executive, or judicial proceeding, or any other official proceeding authorized by law; 2) any written or oral statement or writing made in connection with an issue under consideration or review by a legislative, executive, or judicial body, or any other official proceeding authorized by law; 3) any written or oral statement or writing made in a place open to the public or a public forum in connection with an issue of public interest; or 4) any other conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech in connection with a public issue or an issue of public interest.

ANALYSIS

Defendant Michael Ford moves to strike each cause of action directed at him in Plaintiff Jeffery C. Foy's First Amended Complaint (“FAC”). Defendant Shira Podolsky brings a similar motion to strike portions of Plaintiff's FAC.

Prong One – Ford’s Liability

Ford identifies three categories of allegedly protected conduct, including (1) assisting Defendant Brooke Drogmund (“Drogmund”) in filing a civil TRO application in Los Angeles Superior Court (FAC ¶ 46); (2) being present in the courtroom during an administrative continuance hearing on September 17, 2024 (FAC ¶ 62); and (3) being designated by the presiding judge as a potential witness and waiting in the hallway outside the courtroom at the October 8, 2024 hearing, and allegedly

manufacturing evidence in connection with that hearing (FAC ¶¶ 69-70).

Ford's alleged assistance with the TRO

proceedings, including his communications and presence at court proceedings, would be protected conduct. CCP section 425.16(e)(2) is construed broadly to protect the right of litigants" and applies to a communication "if it has 'some relation' to judicial proceedings." (Healy v. Tuscany Hills Landscape & Recreation Corp. (2006) 137 Cal.App.4th 1, 5; see Alfaro v. Waterhouse Management Corp. (2022) 82 Cal.App.5th 26, 33 [courts have adopted "a fairly expansive view of what constitutes litigation-related activities"]; Neville v. Chudacoff (2008) 160 Cal.App.4th 1255, 1266 [a "statement is 'in connection with' litigation under section 425.16, subdivision (e)(2) if it relates to the substantive issues in the litigation and is directed to persons having some interest in the litigation"].) Here, the TRO filing and associated hearings would be protected conduct. Any statements within the filing, including the allegedly false statements concerning Plaintiff, would likewise be protected conduct as having some relation to the TRO proceeding. Similarly, Ford's participation in the court proceedings as a witness would fall within the litigation privilege. The only question is whether any claims in the FAC arise from such conduct

Ford fails to demonstrate that his

liability for any cause of action is premised on or arises from such protected activities. Against Ford, the FAC alleges causes for nuisance (¶¶ 142-157); stalking (¶¶ 186-223); gender violence (¶¶ 224-248); Ralph Civil Rights Act (¶¶ 275-304); Bane Civil Rights Act (¶¶ 333-361); negligence (¶¶ 378-390); and IIED (¶¶ 391-422). Those causes of action expressly do not incorporate the allegations concerning the TRO proceedings found in paragraphs 44-70. (Id., ¶¶ 142, 186, 224, 275, 333, 378, 391.)

The FAC details the harassment and

stalking conduct which gives rise to liability under each theory, which did not include the TRO filings or the related statements/activities. (Id., ¶¶ 148, 203, 215, 231, 255, 280, 343, 383, 400.) Such conduct includes, for example: "patrolling the area outside Plaintiff's front door and windows with a large, aggressive dog, as many as twenty times (20X) per day; engaging in a pattern of verbally abusing and intimidating Plaintiff at Plaintiff's home and on the Property; contriving scenarios and staging events at Plaintiff's home and on the Property to discredit and disparage Plaintiff; theft of Plaintiff's property having a value twelve times (12X) greater than value threshold for

Grand Theft Larceny in California Penal Code § 487; defacing Plaintiff's property with obscenities targeting his gender expression and sexual orientation; utilizing hate speech and gender identity epithets directed at Plaintiff; offensively touching Plaintiff's person repeatedly after his express protests; covertly surveilling and spying on Plaintiff's home; covertly surveilling, spying on and monitoring the movements of Plaintiff; covertly intruding into Plaintiff's privacy by peering into Plaintiff's doors and windows; impeding and restricting Plaintiff's access into and out of his home; disrupting Plaintiff's peace and quietude at his place of residence; disrupting Plaintiff's place of work and undermining his ability to earn wages and provide for his financial needs; and littering the threshold of Plaintiff's home with trash, dog urination and defecation." (Ibid.) Ford does not (and cannot) contend that such conduct is protected activity. The TRO activities do not supply any element of any claim against Ford.

Accordingly, Ford's motion is
DENIED.

However, since the TRO activities do not supply any element or factual basis for a claim against Ford or any of the Defendants, the Court will exercise its discretion under CCP section 436 to strike paragraphs 37-83 of the FAC along with the incorporated exhibits referenced therein. These paragraphs are irrelevant and would confuse the issues in this matter. For instance, the FAC alleges damages stemming from protected activity, including that Defendants devised "plots and contrivances designed to discredit and humiliate Plaintiff" which could fairly include the TRO and State Bar communications, which were allegedly a part of Defendants' conspiracy. (FAC ¶¶ 46, 208, 266, 322, 350, 408.) On the other hand, Plaintiff has specifically excluded these factual allegations from each of the causes of action. By striking these paragraphs, the damages request is clear that it does not include these protected acts, which would be protected speech under the anti-SLAPP statute. Of note, if the court were to reach the second prong as to the TRO conduct, the motion would be granted since the conduct is absolutely privileged under Civil Code § 47.

Prong One – Podolsky's Liability

Podolsky targets similar petitioning activity, including Drogmund's complaint to the California State

Bar, the filing of the TRO, and communication in connection thereto. For similar reasons previously discussed, the causes of action against Podolsky do not arise from such protected activities.

As to the state bar complaint, the

FAC alleges that Drogmund filed the State Bar complaint, which included a “character assassination diatribe,” an altered version of an August 13 Letter, along with “a litany of scurrilous material, distortions, mischaracterizations and patent, abject lies.” (FAC ¶ 50.) “The catalog of lies and misinformation about Plaintiff that Drogmund forwarded to the Superior Court and State Bar included confidential pieces of information that Drogmund could only have obtained through Empire’s personnel and agents.” (Id., ¶ 51.) Drogmund’s attack on Plaintiff includes disparaging remarks about his spiritual practices and beliefs as well as his gender expression. (Id., ¶ 52.) Drogmund utilized her alleged “impostor-victim strategy” by claiming that Plaintiff’s conduct caused her to suffer a “mental health spiral.” (Id., ¶ 57.) Drogmund knew that her meritless accusations could do substantial damage to Plaintiff’s professional standing, including as a spiritual leader in the Divine Feminine Christ Movement and as an attorney. (Id., ¶ 58.) Drogmund’s false accusations painted Plaintiff in a false light to the State Bar of California was an impactful injury, and was a substantial distraction/disadvantage in the TRO proceeding. (Id., ¶ 61.) The FAC does not specifically allege that Podolsky assisted Drogmund with the State Bar complaint. (FAC ¶¶ 50-61.) Moreover, the FAC does not incorporate the allegations concerning Drogmund’s complaint to the State Bar as to any cause of action against Podolsky. (Id., ¶¶ 142, 186, 224, 275, 333, 378, 391.) The FAC details the harassment and stalking conduct which gives rise to liability under each theory, which did not include the State Bar complaint or related communications. (Id., ¶¶ 148, 203, 215, 231, 255, 280, 343, 383, 400.)

As to the TRO proceedings, the

analysis of Podolsky’s liability is substantially identical to Ford and Drogmund’s liability. While the FAC alleges that the TRO proceedings were a joint effort by Ford, Drogmund and Podolsky, each cause of action expressly does not incorporate the allegations concerning the TRO proceedings found in paragraphs 44-70. (Id., ¶¶ 142, 186, 224, 275, 333, 378, 391.) Instead, the FAC alleges that Podolsky engaged in harassing and stalking conduct, which does not include the TRO filings or the related statements/activities. (Id., ¶¶ 148, 203, 215, 231, 255, 280, 343, 383, 400.)

Accordingly, the motion is DENIED.